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SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF ALAMEDA

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| **BRENDAN NGEHSI NEWANFORBI,**<br><br>Petitioner,<br><br>**v.**<br><br>**CALIFORNIA HIGHWAY PATROL; G. SERRATO, in his official capacity as Captain and Commander of the California Highway Patrol Dublin Area; GARY PAUL, in his official capacity as Lieutenant of the of the California Highway Patrol Dublin Area; ERIC DUTRA, in his official capacity as Sergeant of the California Highway Patrol Dublin Area; and DOES 1 through 10, inclusive,**<br><br>Respondents. | 26CV191136<br><br>**[PROPOSED] ORDER SUSTAINING DEMURRER TO PETITION FOR WRIT OF MANDATE** |

**[PROPOSED] ORDER**

The demurrer of Respondent California Highway Patrol ("CHP"), came on for hearing in Department 25 of this Court on August 28, 2026. Counsel for Respondent and Petitioner appeared.

Having read and considered the demurrer, the memoranda and supporting documents filed by the parties, and having heard argument of counsel for Respondent and Petitioner,

**IT IS ORDERED THAT** the demurrer of CHP to the Petition for Writ of Mandate is sustained without leave to amend.

Dated: _____

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The Honorable Jenna M. Whitman